Patient's Bill of Rights and Responsibilities

The DoD Patient Bill of Rights and Responsibilities is intended to strengthen patient confidence by assuring the healthcare system is fair and responsive to patients' needs, provides patients with credible and effective mechanisms to address their concerns and encourage patients to take an active role in improving and maintaining their health. It reaffirms the importance of strong relationships between patients and their healthcare professionals and also reaffirms the critical role patients play in safeguarding their own health.

All persons obtaining care within the 59th Medical Wing are entitled to certain rights and also subject to certain responsibilities. The observance of these rights and responsibilities, by both patients and facility personnel, is vital to the assurance that patient care and services are delivered in an appropriate and efficient manner.

If at any time, you believe your rights are being compromised, please bring it to the attention of your Primary Care Manager or a Patient Advocate. Clinic Patient Advocates are designated individuals in each clinic who will help with patient suggestions or concerns and should be consulted as a first resource. The 59th Medical Wing Patient Advocate can be reached at (210) 292-6688 and (210) 292-7827 at Wilford Hall Ambulatory Surgical Center. Patient Advocate clinic contact list can be found at: https://wilfordhall.tricare.mil/Patient-Resources/Patient-Advocate.

YOUR RIGHTS AS A PATIENT

MEDICAL CARE Patients have the right to quality care and treatment that is consistent with available resources and generally accepted standards, including timely access to specialty care and to pain assessment and management.

RESPECTFUL TREATMENT Patients have the right to considerate and respectful care, with recognition of personal dignity, psychosocial, spiritual, and cultural values and belief systems.

PRIVACY AND SECURITY Patients have rights, defined by Federal law, to reasonable safeguards for the confidentiality, integrity, and availability of their protected health information, and similar rights for other personally identifiable information, in electronic, written, and spoken form. These rights include the right to be informed when breaches of privacy occur, to the extent required by Federal law. Patients have the right to be informed in advance of making a sensitive disclosure during a health care encounter that in certain circumstances the provider is mandated to make a notification to an individual, agency or service, without requiring the patient's permission or consent to make the provider notification. For example, types of sensitive disclosures may include but are not limited to sexual assault or harassment, domestic violence, substance misuse or abuse, or intent to harm self or others.

PROVIDER INFORMATION Patients have the right to receive information about the individual(s) responsible for, as well as those providing care, treatment, and services. The Military Medical Treatment Facility (MTF) will inform the patient of the names, and as requested, the professional credentials of the individual(s) with primary responsibility for, as well as those providing treatment, and services.

EXPLANATION OF CARE Patients have the right to an explanation concerning their diagnosis, treatment options, procedures, and prognosis in terms that are easily understood. The specific needs of vulnerable populations in the development of the patient's treatment plan shall be considered when applicable. Such vulnerable populations shall include anyone whose capacity for autonomous decision making may be affected. When it is not medically advisable to give such information to the patient due to vulnerabilities or other circumstances, the information should be provided to a designated representative.

INFORMED CONSENT Patients have the right to any and all necessary information in non-clinical terms to make knowledgeable decisions on consent or refusal for treatments, or participation in clinical trials or other research investigations as applicable. Such information is to include any and all complications, risks, benefits, ethical issues, and alternative treatments as may be available.

FILING GRIEVANCES Patients have the right to make recommendations, ask questions or file grievances to the Military Treatment Facility Patient Relations Representative or to the Patient Relations Office. If concerns are not adequately resolved, patients have the right to contact the Joint Commission (TJC) at 1-800-994-6610, or by submitting a concern or complaint online at https://www.jointcommission.org/report_a_complaint.aspx or by mail:

Office of Quality and Patient Safety
The Joint Commission
One Renaissance Blvd
Oakbrook Terrace, Illinois 60181

RESEARCH PROJECTS Patients have the right to know if the MTF proposes to engage in or perform research associated with their care or treatment. The patient has the right to refuse to participate in any research projects and withdraw consent for participation at any time.

***INTERPRETER SERVICES*
Your Healthcare Provider or staff member will arrange for interpreter services as needed.

SAFE ENVIRONMENT Patients have the right to care and treatment in a safe environment.

MTF RULES AND REGULATIONS Patients have the right to be informed of the MTF rules and regulations that relate to patient or visitor conduct.

TRANSFER AND CONTINUITY OF CARE When medically permissible, a patient may be transferred to another MTF or private sector facility/provider only after he or she has received complete information and an explanation concerning the needs for and alternatives to such a transfer.

CHARGES FOR CARE Patients have the right to understand the charges for their care and their obligation for payment.

ADVANCE DIRECTIVE Patients have the right to make sure their wishes regarding their healthcare are known even if they are no longer able to communicate or make decisions for themselves. NOTE: Separate informational brochures are available covering Advance Directives and information on appeal rights. Please ask your healthcare provider for this information.

CHAPERONES Patients have the rights to a chaperone both inpatient and outpatient clinic visits, specifically during sensitive physical exams and treatments. Patients have a right to request a different chaperone, when feasible, staff will try to accommodate request or assist with rescheduling. There may be emergency situations that require an exception to a chaperone where delay in care could jeopardize life.

YOUR RESPONSIBILITIES AS A PATIENT

PROVIDING INFORMATION Patients are responsible for providing accurate, complete and up-to-date information about complaints, past illnesses, hospitalizations, medications and other matters relating to their health to the best of their knowledge. Patients are responsible for advising their healthcare provider of whether they understand the diagnosis, treatment plan and prognosis.

RESPECT AND CONSIDERATION Patients are responsible for being considerate of the rights of other patients and MTF healthcare personnel. Patients are responsible for being respectful of the property of other persons and of the MTF.

ADHERENCE WITH MEDICAL CARE Patients are responsible for adhering to the medical and nursing treatment plan, including follow-up care, recommended by healthcare providers. This includes keeping appointments on time and notifying MTF when appointments cannot be kept.

MEDICAL RECORDS Patients are responsible for returning medical records promptly to the MTF for appropriate filing and maintenance if records are transported by the patients for the purpose of medical appointments, consultations, or changes of duty location. All medical records documenting care provided by any MTF are the property of the U.S. Federal Government.

RULES AND REGULATIONS Patients are responsible for following MTF rules and regulations affecting patient care and conduct.

REFUSAL OF TREATMENT Patients are responsible for their actions if they refuse treatment, or do not follow the practitioner's instructions.

HEALTHCARE CHARGES Patients are responsible for meeting financial obligations incurred for their healthcare as promptly as possible.

Safety Code of Conduct

In an effort to provide a safe and healthy environment for all patients, staff, and visitors. all individuals within our facilities must treat others with respect, honesty, and integrity. The following guidelines are set forth to shape and maintain a culture of safety. for all in the healthcare community we serve.

Engaging in any of the following behaviors is strictly prohibited:

- Possession of firearms or any weapons
- Physical assault, arson, or inflicting bodily harm
- Intentionally damaging equipment or property
- Rude behaviors in person or through written, verbal or electronic communication, including but not limited to: profanity, harassment, threats of violence, disrespectful, offensive or intimidating statements or gestures
- Derogatory remarks associated with, but not limited to, race, religion, language, gender, or sexual orientation
- Requests that would constitute illegal or unethical behavior

It is the responsibility of all individuals to report any violations or suspected violations of the Safety Code of Conduct to any staff member at any time.

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